

DEPARTMENT OF VETERANS AFFAIRS

**FAR 8 – Justification for Limiting Sources (LSJ)
For
Limiting Sources (<SAT)**

Acquisition Plan Action ID: 36C250-25-AP-2859

- 1. Contracting Activity:** Department of Veterans Affairs, Network Contracting Office (NCO) 10, located at 260 E University Avenue, Cincinnati, OH 45219-2356, in support of VISN 10 VA Health Care System at 17273 State Route 104, Chillicothe, OH 45601-9718. 2237 #: 538-25-3-087-0061.
- 2. Description of Action:** This new request for a one time firm fixed price contract from the Chillicothe VAMC Urology Clinic staff is to procure brand name Karl Storz cystoscopes to replace existing Karl Storz cystoscopes at the facility.

Order against: ☒ FSS Contract Number: 36F79723D0185

Name of Proposed Contractor: Karl Storz Endoscopy-America, Inc (Large Business)
Street Address: 2151 E Grand Avenue
City, State, Zip: El Segundo, CA 90245-
Phone: (800)421-0837

- 3. Description of Supplies or Services:** The clinicians have determined that newer versions of the Karl Storz equipment in their existing inventory are the best options available to perform future cystoscopy procedures. The following equipment is being requested:

- TP101-UG – TELE PACK +, CCU /LIGHT SOURCE/MONITOR – Quantity of 1 Each
- 27425FG – FLEXIBLE GRASPING FORCEPS F/STONE FRAGMENTS, DOUBLE ACTION JAWS, 5FR X 60 CM – Quantity of 5 Each
- 39406AS-UG – Tray, UDEL, Flexible CMOS Videoscopes DM: 21.45" X 10.10" X 3.04" – Quantity of 5 Each
- XUSM0001-4-UG – IV POLE ASSEMBLY, FOR XUSM0001 / XUSM0013 W/ 8.5 INCH EXTENSION ARM, UG – Quantity of 1 Each
- XUSM0001-UG – COMPACT ENDOSCOPY CART W/ DRAWER, KEYBOARD TRAY AND ISOLATION TRANSFORMER, UG – Quantity of 1 Each

- WU1333-UG – SONY UP-DR80MD MEDICAL GRADE PRINTER FOR USE WITH USB AND WIRELESS PRINTING – Quantity of 1 Each
- PR-11272VHUK-TL-CT – CONVERSION HD-VIEW FLEX VIDEO CYSTO, CMOS 16FR X 37CM, CHNL: 7FR, US DEFL, 210*/140* - Quantity of 5 Each
- 27502 – LUER-LOCK CONNECTOR WITH STOPCOCK – 1 Year Warranty – Quantity of 7 Each

Market research initiated by the requesting service confirmed the items are provided on the FSS contract identified above in Section 2 from the original equipment manufacturer (OEM), Karl Storz Endoscopy-America, Inc., a large business (LB). The OEM was contacted to seek product information and availability. An informal pricing quote was provided. Additional market research queries were conducted by the Contracting Specialist using VetCert, GSA Advantage, VA NAC, FPDS-NG, NASA SEWP databases and other sources. The needed items were found to be available on the FSS contract held by the OEM.

Additionally, two (2) VetCert certified small-disabled veteran owned small business (SDVOSB) contract holders were found to have NASA SEWP contracts offering Karl Storz products. However, the items for this requirement were not found. The OEM was contacted and confirmed that the only items provided with the SEWP contract(s) are “high end Operating Room Integration Systems” and the Technology Driven 4K video and data management components that are used in conjunction with those items.

The OEM also provided a letter dated 01/08/2025 confirming that L1 Enterprises, a VetCert certified (SDVOSB) is their only authorized reseller of the products and services needed for this requirement. The items are offered by the SDVOSB with open market pricing.

The product NAICS code is found in the Non Manufacturer Rule (NMR) Class Waiver database. There is no reasonable expectation of obtaining offers from two or more responsible small business concerns. The VA and SBA Rules of Two cannot be met. Based upon the market research findings, it is determined that a fair and reasonable price can be obtained from the OEM with FSS pricing. An Intent to Sole Source to the OEM will be posted to GSA.gov.

The estimated value of the proposed action is \$ 107,807.57.

4. Authority:

Order Against FSS: Authority of the Multiple Award Schedule Program, Title III of the Federal Property and Administrative Services Act of 1949 (41 USC 251, et seq.); Title 40 USC 501, Services for Executive Agencies; and Section 803 of the National Defense Authorization Act of 2002 (PL 107-107) and implemented by [FAR 8.405-6](#). Mark the applicable exception:

☐ **An urgent and compelling need exists**, and following the procedures would result in unacceptable delays([FAR 8.405-6\(a\)\(1\)\(i\)\(A\)](#));

☒ **Only one source** is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized; ([FAR 8.405-6\(a\)\(1\)\(i\)\(B\)](#)); brand name only.

☐ In the interest of economy and efficiency, the new work is **a logical follow-on** to an original Federal Supply Schedule order and the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. **The original order was not previously issued under sole-source or limited-sources procedures** ([FAR 8.405-6\(a\)\(1\)\(i\)\(C\)](#)); or

☐ **Items peculiar to one manufacturer.** An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer). A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer ([FAR 8.405-6\(b\)](#)).

5. Rationale/explanation to support cited authority: Karl Storz is a long standing manufacturer of urological equipment with an excellent track record for quality, safety and ease of use. The facility has existing Karl Storz cystoscopes that will be traded in. The replacement equipment will be compatible with Cerner when it arrives and is installed at the facility. The OEM is the only source offering FSS pricing for the needed equipment.

The Urologist uses Karl Storz equipment when performing procedures at the Columbus VAMC. He has been trained on it and has determined the equipment performs well. The requested equipment will allow the Urologist to deliver the safest and best care to the Veterans he performs cystoscopies for at the Chillicothe VAMC. The clinical nursing staff has competencies for use of the equipment. The Sterile Processing Service (SPS) staff are also competent on the mandatory reprocessing procedures to maintain reusable medical equipment (RME). It is believed by the staff that asking the provider and staff to utilize another type of equipment besides what they are familiar with poses potential risks to patient safety.

6. BRAND NAME ONLY: This buy is estimated to exceed \$25,000 and this documentation will be posted along with the RFQ on e-Buy, as required by FAR 8.405-1(e).

Attachment 1: Justification for Limiting Sources for Micro-Purchase Threshold up to the SAT

7. Note that this determination satisfies the requirements of [FAR 8.405-6](#). The requirement to prepare a written justification [IAW FAR 6.303](#) does not apply to Federal Supply Schedules.